

Krishan Kumar v. State of U.P. and others

Allahabad High Court · Division Bench · 24 September 2018 · WRIT - C No. - 38427 of 2008 · **Writ allowed; objection-decision quashed; fresh hearing directed.**

HEADNOTE

An order deciding an objection to a provisional assessment for alleged electricity theft, passed without fixing a date of personal hearing as paragraph 6.8 C of the Electricity Supply Code, 2005 requires, violates natural justice and cannot stand. A direction to decide a representation is a direction to decide in accordance with law, including that hearing mandate.

FACTUAL SUMMARY

Krishan Kumar challenged an order dated 26 April 2008 deciding his objection to a provisional assessment for alleged electricity theft. In an earlier writ (Civil Misc. Writ Petition No. 18316 of 2008) a Division Bench had, on 8 April 2008, directed the authorities to decide that objection. He alleged the objection was decided cursorily without fixing a hearing date. The electricity department submitted that the impugned order merely complied with the Court's direction to decide the representation.

REUSABLE CONSTRUCTIONS

1. An objection to a provisional theft assessment must be decided after a date of personal hearing is fixed under paragraph 6.8 C; an order from which no hearing is apparent violates natural justice and cannot stand. ¶ 1
2. A court's direction to decide a representation is a direction to decide in accordance with law, including the Code's hearing mandate. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Mandatory hearing before deciding objection to provisional assessment

HOLDING

Whenever the Court directs an authority to decide an objection or representation, the authority must act in accordance with law. Paragraph 6.8 C of the Electricity Supply Code, 2005 mandates that a date of hearing be fixed. An order deciding an objection against a provisional assessment for alleged electricity theft, from which it is not clear that any opportunity of hearing was given, violates the principles of natural justice, cannot be sustained, and is quashed, with liberty to pass a fresh order after personal hearing. ¶ 1

FLAG Court cites paragraph 6.8 C; catalog lists UP-2005::6.8(d).

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT ASSESSMENT AND OF THE PETITIONER'S OBJECTION

Impugned order quashed only for want of hearing; authority left free to pass a fresh order after personal hearing. ¶ 1